

25STCP00271 25STCP00271

County: los-angeles

Division: Civil Law and Motion

Department: 400

Hearing date: 2026-06-24

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C400%2C06%2F24%2F2026

Source SHA-256: 0552ec52b31720915509618e0ebd951e045cf0c4544149a12ce0534cf06d75a0

Case Number: 25STCP00271 Hearing Date: June 24, 2026 Dept: 400

MOTIONS TO COMPEL FURTHER RESPONSES TO REQUESTS FOR PRODUCTION AND

SPECIAL INTERROGATORIES

Relief Requested:

Plaintiff Steven Kaminsky moves for an order compelling

Defendants Richard Waggoner, Jia Jiang, and Ryan Miller to produce further

responses to Plaintiff's Requests for Production of Documents, Set One, and Special

Interrogatories, Set One. Plaintiff also requests monetary sanctions. Defendants

oppose the motions. Plaintiff's motions are GRANTED and the Court awards

sanctions in the amount of \$1,500 per motion for a total of \$9,000.

Analysis:

Defendants did not file a separate

statement in response to Plaintiff's separate statements. Defendants instead,

filed supplemental responses, which Plaintiffs argue repeat the same

deficiencies of the initial discovery responses.

In regards to the Special

Interrogatories, Set One, Waggoner's responses numbers 1, 2, 3, 4, 5, 7, 8, 10,

12, 14, 15, 19, 20, 21, 22, 23, 25, 26, 28, 30, 34, 36, 37, 40, 41, 44, 45, 46,

47, and 49 are at issue, as well as Miller's responses numbers 2, 4, 6, 11, 12,

14, 15, 16, 18, 19, 20, 21, 22, 25, 26, 27, 28, 32, and 34, and Jiang's responses to numbers 4, 5, 7, 8, 9,

10, 11, 12, 13, 14, 30, 32, 36, 37, 40, 50, 51, 52, 53, 54, 55, 56, 57, 58, 59,

and 60. However, Defendants have failed to file a separate statement or otherwise

justify how their responses are adequate.

As Plaintiff timely filed

these motions to compel further, the responding party has the burden to justify

its objections to these requests. (Fairmont

Ins. Co. v. Superior Court (2000) 22 Cal.4th 245, 255.) The responding parties

have failed to meet its burden. The motions to compel further are GRANTED.

As for the Requests for Production of Documents, Set One,

at issue are Waggoner's responses to numbers 1 through 58, Miller's responses

to numbers 1 through 17, and Jiang's responses numbers 1 through 10. However,

Defendants have failed to file a separate statement or otherwise justify how

their responses are adequate. As Plaintiff timely filed these motions

to compel further, the responding party has the burden to justify its

objections to these requests. (Fairmont

Ins. Co. v. Superior Court (2000) 22 Cal.4th 245, 255.) The responding parties

have failed to meet its burden. The motions to compel further are GRANTED.

Sanctions

Regarding the motions to compel

further responses to the Special Interrogatories, Set One, Plaintiff requests sanctions

in the amount of \$9,685 imposed against Defendant Jiang and Defendant Miller each

and sanctions in the amount of \$14,935.00 should be imposed against Waggoner

and his counsel. (Utsumi Decl. ¶¶ 12–16, 19-22.)

In reference to the motions to

compel further to the requests for production of documents, against Defendant

Waggoner, Plaintiff seeks \$14,935.00 in fees and costs and against Defendants Miller

and Jiang each, Plaintiff seeks \$9,685.00 in fees and costs. (Utsumi Decl. ¶¶ 21,

24.)

The grand total of sanctions

requested appears to be \$68,610 for the six motions. This is an unreasonable

amount of sanctions. Instead, the Court

grants the Plaintiff \$1,500 per motion for a total of \$9,000.

Conclusion:

The Court grants Plaintiff's six

motions to compel further and grants Plaintiff \$1,500 per motion in monetary

sanctions for a total of \$3,000 per Defendant, or \$9,000. Sanctions are to be paid to Plaintiff's

counsel within 30 days.